

Tentative Rulings for June 8, 2026 Department 3

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 3 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 692 7358**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2406744	CRISTESCU VS WELLS FARGO BANK, N.A.	MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR ADMISSIONS, SET ONE

Tentative Ruling:

On May 6, 2026, Plaintiff Dorina Cristescu (in pro per) filed a Motion to Compel Further Responses to Plaintiff's Requests for Admissions and Requests for Production of Documents, to Deem the Matters in the Requests for Admissions Admitted, and for Monetary Sanctions. Accompanying the motion is a Proof of Service, signed by Virgil Cristescu.

Defendant Wells Fargo has not filed an opposition.

The Court understands that Plaintiff is in pro per, and to the pro per litigant, "interrogatories, requests for admissions, law and motion proceedings, and the like" are "baffling devices." (*Bruno v. Superior Court* (1990) 219 Cal.App.3d 1359, 1363, quoting *Burley v. Stein* (1974) 40 Cal.App.3d 752, 755, fn. 3.)

Nonetheless, Plaintiff's Motion to Compel is procedurally incomplete, and to grant the motion would be to deny Defendant its due process rights. In particular:

1. The Motion does not indicate the date on which it will be heard. Instead, the Notice of Motion simply states, "PLEASE TAKE NOTICE that on [insert reserved hearing date], at 8: 30 a.m., or as soon thereafter 18 as the matter may be heard, in Department 2 of the above-entitled Court . . ." (Motion, p. 1:17-18.) Since no date is indicated, Defendant cannot know when it is to appear. Further, it is incorrect that the hearing is to be held in Dept. 2; this case is assigned to Dept. 3.
2. The Notice of Motion is not signed. It simply has a blank line where the signature should be. (Motion, p. 2:4-7) Pursuant to CCP §128.7, "Every pleading, petition, written notice of motion, or other similar paper shall be signed by at least one attorney of record in the attorney's individual name, or, if the party is not represented by an attorney, shall be signed by the party."
3. Similarly, the Motion itself is not signed. It too simply has a blank line where the signature should be. (Motion, p. 4:5-8; See CCP §128.7.)
4. Lastly, the Declaration of Plaintiff Dorina Cristescu is not signed. The declaration simply states, "I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct, Executed on May 6, 2026, at Lake Elsinore, California." Underneath the affirmation is the typed name "Donna Cristescu," but there is no signature. (See CCP §128.7.)

This Court recognizes that “Providing access to justice for self-represented litigants is a priority for California courts.” (California Rules of Court, rule 10.960, subdivision (b).) “[W]hen a litigant is self-represented, a judge has the discretion to take reasonable steps, appropriate under the circumstances and consistent with the law and the canons, to enable the litigant to be heard.” (See also ABA Model Code of Jud. Conduct, canon 2, rule 2.2, com. 4 “[i]t is not a violation of this Rule [regarding impartiality and fairness] for a judge to make reasonable accommodations to ensure pro se litigants the opportunity to have their matters fairly heard”].) The canons and commentary thus provide a path to ensure a self-represented litigant can be fairly heard on the merits while the court maintains its impartiality and does not assume (or appear to assume) the role of advocate or partisan. (See Cal. Code Jud. Ethics, canon 3 [“a judge shall perform the duties of judicial office impartially, competently, and diligently”].)” (*Holloway v. Quetel* (2015) 242 Cal.App.4th 1425, 1434.)

At the same time, “[a] party proceeding *in propria persona* ‘is to be treated like any other party and is entitled to the same, but no greater[,] consideration than other litigants and attorneys.’” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 985.) Indeed, “the *in propria persona* litigant is held to the same restrictive rules of procedure as an attorney.” [Citation.]” (*First American Title Co. v. Mirzaian* (2003) 108 Cal.App.4th 956, 958, fn. 1; see also *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247.)

This is a “difficult balance” for the Court. (*Holloway v. Quetel* (2015) 242 Cal.App.4th 1425, 1434.) However, due to the serious errors of Plaintiff’s Motion, it would be error for the Court to grant the motion.

Tentative Decision

The Court DENIES, without prejudice, Plaintiff’s Motion to Compel. Plaintiff may re-file her motion if she so chooses, keeping in mind that the Notice of Motion, Motion and Declaration must all be signed.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501697	RENEAU VS LOVE TRANSIT, INC.	MOTION FOR LEAVE TO INTERVENE ON BEHALF OF OBSIDIAN SPECIALTY INSURANCE AS INTERVENOR FOR LOVE TRANSIT

Tentative Ruling:

On 5/6/26, Obsidian Specialty Insurance Co. filed its Motion to Intervene and Proposed Complaint-in-Intervention.

Pursuant to Obsidian, “This Motion is made pursuant to Code of Civil Procedure Section 387(d) on the grounds that Obsidian provides automobile liability insurance to

Defendant LOVE TRANSIT INC., (hereinafter "Love Transit"). Defendant Love Transit has been unresponsive, unavailable, and otherwise absent since February 12, 2026, despite all reasonable efforts by its counsel and Obsidian. As such, and to avoid irreparable harm, Obsidian seeks to intervene to litigate the liability and damages issues on its own behalf." (Motion, p. 2:8-13.)

"The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both." (Code of Civil Procedure section 387(d)(2).) "Section 387 should be liberally construed in favor of intervention." (*Lindell v. Town of San Anselmo* (2006) 139 Cal.App.4th 1499, 1505; see also *Nasongkhla v. Gonzalez*, (1994) 29 Cal. App. 4th Supp.1.)

The Motion is procedurally proper. As of the writing of this tentative opinion, there has been no opposition to Obsidian's Motion.

Tentative Decision

The Court GRANTS Obsidian's Motion for Leave to Intervene. Obsidian is to file its Answer-in-Intervention within five days of notice of this ruling.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600194	CITY OF SAN JACINTO VS PATTI C. NEFF	MOTION FOR ORDER FOR PREJUDGMENT POSSESSION BY CITY OF SAN JACINTO

Tentative Ruling:

On 1/7/26, Plaintiff City of San Jacinto filed its complaint in eminent domain.

On 2/26/26, Plaintiff City of San Jacinto filed its Motion for prejudgment possession. According to the City's Motion, "This Motion is made pursuant to Code of Civil Procedure sections 1255.410 et seq., on the grounds that the City, as an entity with the power of eminent domain, is authorized to take prejudgment possession of the permanent road easement interest in the Property for public street improvements for the San Jacinto Street (Avenue) Safety Improvement Project in the City of San Jacinto, Riverside County, California, and for such other uses as are permitted, pursuant to section 37350 et seq. of the California Government Code and Code of Civil Procedure sections 1240.110 and 1240.120. The City is vested by law with authority to exercise the power of eminent domain to acquire private property for the construction of streets, bridges, and other public infrastructure." (Motion, p. 2:11-19.)

The Motion contains a notice to defendant that if they wish to oppose the motion, they must file and serve their opposition with 30 days. (Motion, p. 2:20-26.)

The Motion is accompanied by a Declaration from Stuart McKibbin, a Contract City Engineer, in support of the Order for prejudgment possession. The Declaration was signed on 12/19/25.

There is a Proof of Service of Summons indicating substituted service on Defendant's son on 3/20/26.

Defendant has not filed an opposition, or any other document, in this action.

An eminent domain plaintiff is presumed to have met the requirements for possession if the motion for prejudgment possession is not opposed within 30 days of service. "The court shall make an order for possession" if it finds that the plaintiff is entitled to take the property by eminent domain, and that it has made the requisite deposit. (CCP §1255.410(d)(1).) If the motion is opposed the condemning agency bears the additional burden of showing that there is an overriding need for prejudgment possession and that if possession is denied, the agency will suffer substantial hardship that is greater than the hardship suffered by the opposing party. (CCP §1255.410(d)(2).)

Plaintiff's Complaint in Eminent Domain is procedurally correct. With the exception noted below, the City has met all the requirements to acquire the property. (The Court notes that the Motion states that the Resolution of Necessity is attached as Exhibit 3 to the Complaint. (Motion, p. 3:20.) It is actually attached as Exhibit 2(A).)

Plaintiff states that "by the time this matter is heard before this Court, the City will have made the requisite deposit of probable just compensation pursuant to Code of Civil Procedure sections 1255.010 et seq. . . . A Notice of Deposit and accompanying Statement of Value and Summary of the Basis for Appraisal for the interests to be acquired will be filed after this deposit is made." (Motion, p. 7:19-25.)

Tentative Decision

If Plaintiff brings its Notice of Deposit and accompanying Statement of Value and Summary of the Basis for Appraisal to the Court hearing, then Plaintiff's Motion for Prejudgment Possession will be GRANTED. If Plaintiff fails to bring the required evidence to the Court hearing, then Plaintiff's Motion for Prejudgment Possession will be DENIED.